

25VECV06750 25VECV06750

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CB%2C07%2F23%2F2026

Source SHA-256: 3823bf80eaa40da46d4e564c3b98d5034514a3c656fb1dbb0227e4a250e67cfe

Case Number: 25VECV06750 Hearing Date: July 23, 2026 Dept: B

Tentative Ruling

Chalikyan v. Volkswagen Group of
America, Case no. 25VECV06750

Hearing date July 23, 2026

Plaintiff

Chalikyan's Motion to Compel Further Discovery

Plaintiff

Chalikyan sues defendants Volkswagen Group of America ("VGA") and Galpin Motors, Inc., for violations of the Song-Beverly Act. Plaintiff moves to compel further responses to requests for production of documents, set one, nos. 1-31. VGA opposes.

Code

Civ. Proc. §2031.310(a) states "the demanding party may move for an order compelling further response to the demand if the demanding party deems that . . . (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive..."

The

discovery seeks documents relating to: (1) subject vehicle and repair attempts; (2) VGA's warranty, replacement and repurchase policies; and (3) VGA's knowledge of same or similar defects in vehicles of the same make, model and year. See Decl. Hozven, para. 11, exh. 2. VGA served boilerplate objection-only responses 2/6/26. Id. at para. 12, exh. 3. VGA served further responses on 2/10/26

which were comprised of boilerplate objections, without a privilege log, and only partially responsive. Id. at para. 13, exh. 4.

The

parties exchanged meet and confer letters and spoke. Decl. Hozven, paras. 15, 19-20, exhs. 5-6. VGA's counsel agreed to produce: (1) documents related to other similar incidents; (2) SAGA warranty claims; and (3) documents relating to VGA procedures, which were not produced. Id., para. 21.

VGA

argues plaintiff failed to meet and confer in good faith. The parties exchanged letters and spoke. See Decl. Sharma, paras. 5-6, exhs. C-D. That the parties allegedly reached an agreement as to further production is evidence that meet and confer efforts were made, regardless of their ultimate effectiveness. There is no basis to find plaintiff failed to meet meet-and-confer obligations prior to filing this motion.

VGA

argues the RFPs are overbroad and seek discovery beyond documents related to the subject vehicle. Documents related to similar incidents in vehicles of the same make, model and year are relevant and admissible. *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154-55; *Kwan v. Mercedes-Benz of N. Am., Inc.* (1994) 23 Cal.App.4th 174, 185. Discovery in California is broad. Code Civ. Proc. §2017.010.

VGA's

opposition admits it "offered to produce SAGA and Other Similar Instances ("OSI") documents... however, due to a technical issue at [d]efendant's end, counsel for [d]efendant has been unable to get those documents but remains willing to provide them once received." Opp. 3:23-26. This constitutes an admission that further responses are warranted. VGA argues it "already produced documents responsive to all of [p]laintiff's RFPs with the exception to documents responsive to RFP Nos. 30 prior to [p]laintiffs(sic) filing this [m]otion. [VGA] has informed [p]laintiff that it will produce responsive documents to RFP Nos. 30 and 31." Opp. 1:17-19. VGA "produced additional confidential documents pursuant to the stipulated protective order entered into by the [p]arties, including its policies and procedures and dealer manual." Decl. Shama, para. 7. No further responses or supplemental filings have been received. See Reply Decl. Hozven, para. 28.

Plaintiff

is entitled to full and complete production to RFPs, set one, nos. 1-31. To the extent documents are withheld based on privilege, a privilege log must be provided. No sanctions are sought. GRANTED; complete, code-compliant responses to be served within 30 days. The parties to update the court on the status of discovery at hearing.